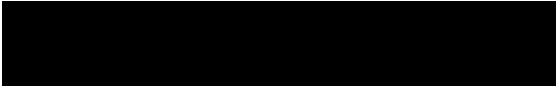


09/01/2026

Michael Wriston



RE: ICE FOIA Request 2026-ICF0-31191

Dear Requester:

This letter concerns your ICE FOIA request dated 6/22/2026, in which you seek records pertaining to National Environmental Policy Act review records prepared, received, completed, or dated on or after July 1, 2025, relating to specified ICE detention facilities or facility sites, including environmental review determinations, assessments, impact statements, notices, scoping materials, technical studies, and related correspondence with third-party environmental, engineering, or consulting firms.

As currently framed, your response provides some helpful clarification, including a closed date range and confirmation that you seek only records within ICE's custody and control. However, the response does not sufficiently clarify the request in a manner that allows ICE to conduct a focused and reasonable search. FOIA requires that a request reasonably describe the records sought so that agency personnel can locate them with a reasonable amount of effort. The clarification continues to seek multiple categories of environmental, facilities, acquisition, detention-planning, contract, and correspondence records across numerous offices, locations, custodians, systems, and external entities.

Records of this type are not maintained in a single agency-wide repository. ICE cannot reasonably search all potentially relevant environmental compliance, facilities, acquisition, ERO custody management, field office, contracting, COR, SharePoint, shared drive, project file, and communications repositories for nine facilities without more focused parameters. Please identify the specific ICE directorate, program office, field office, contract number, project name, facility name, or facility address to be searched for each record category. If you seek records for all nine facilities, please narrow the request by identifying the specific record types and ICE offices you want searched for each

facility.

For the communications portion of the request, the clarification remains too broad. The listed custodians include broad functional groups such as "any deputy or acting holder," "environmental protection specialists or NEPA coordinators assigned to detention projects," "the facilities official responsible for detention site acquisition and renovation," "contracting officers and CORs for the listed sites," and "ERO custody management officials responsible for detention facility planning." To conduct a reasonable communications search, please identify the specific custodians by name or specific position title and office. ICE cannot search undefined groups of personnel or determine all employees who may fit a functional description across multiple facilities and offices.

Please also clarify the communications systems and search methodology. Your response asks ICE to search email, archived mail, Microsoft Teams, SharePoint, shared drives, "any environmental compliance tracking system," and project files. ICE cannot search undefined systems, all shared drives, all project files, or all possible tracking systems without identifying the specific office, repository, project, or records location. Please identify the specific systems or repositories you want searched and the specific custodians or offices associated with each system.

Please confirm the exact search terms you want ICE to use and the parameters for applying them. Your response asks that terms be searched "alone and combined with the facility names and addresses in the original request." Please specify the exact Boolean logic or combinations you want used and whether the terms should be applied to subject lines, body text, attachments, file names, metadata, or some combination of those locations. ICE cannot determine the intended scope of an electronic search where the request leaves the agency to generate combinations or apply unspecified search logic across multiple systems.

Please further clarify the request for third-party communications. ICE can process only records within ICE's custody and control and will not obtain records held solely by non-ICE entities. For communications with external entities, please provide known external email domains so ICE can target

communications to and from those entities. A request to search communications with "any [non-dhs.gov](https://www.dhs.gov) domain" is not sufficiently targeted and would capture communications beyond the subject matter of the request. If you do not know vendor domains, please narrow the request to specific ICE-held contract files, project files, or final environmental compliance records for identified facilities.

Finally, while you state that certain document categories are severable from the correspondence category, the non-communications portion still requires clarification because the request covers numerous facilities, record types, offices, and potential repositories. Please identify the specific final environmental compliance records sought for each facility, such as records of environmental consideration, categorical exclusion determinations, environmental assessments, findings of no significant impact, environmental impact statements, notices, scoping materials, or technical studies, and the ICE office or project file likely to maintain them.

Until this additional clarification is provided, ICE is unable to proceed with an adequately focused search for records responsive to your request as currently framed.

Please provide your clarification as soon as possible to avoid further delay in processing your request. You may respond by sending a message through the SecureRelease portal or by emailing ICE-FOIA@ice.dhs.gov.

If we do not receive a sufficiently clarified response within **30 working days** from the date of the initial clarification letter, your request will be **administratively closed**.

Your request has been assigned reference number 2026-ICF0-31191. Please include this number in any future correspondence regarding your request.

Sincerely,

Freedom of Information Act (FOIA) Office
Office of Information Governance and Privacy

U.S. Immigration and Customs Enforcement
ICE-FOIA@ice.dhs.gov | www.ice.gov/foia